

Kathryn N. Nester (13967)
NESTER LEWIS PLLC
40 S 600 E
Salt Lake City, UT 84102
Telephone: (801) 535-4375
Email: kathy@nesterlewis.com

Richard G. Novak, *pro hac vice*
RICHARD G. NOVAK, APLC
65 North Raymond Avenue, Suite 320
Pasadena, CA 91103
Telephone: 626-578-1175
Email: Richard@RGNLaw.com

Michael N. Burt, *pro hac vice*
LAW OFFICE OF MICHAEL BURT PC
1000 Brannan Street Suite 400
San Francisco, California 94103
Telephone: 415-522-1508
Email: mb@michaelburtlaw.com

Staci Visser (14358)
BROWN, BRADSHAW & MOFFAT
422 N 300 W
Salt Lake City, UT 84103
Telephone: 801-532-5297
Email: Staci@brownbradshaw.com

Attorneys for Tyler James Robinson

IN THE FOURTH JUDICIAL DISTRICT COURT, PROVO DEPARTMENT

IN AND FOR THE COUNTY OF UTAH, STATE OF UTAH

STATE OF UTAH, Plaintiff, vs. TYLER JAMES ROBINSON, Defendant.	DEFENDANT TYLER JAMES ROBINSON'S MEMORANDUM IN OPPOSITION TO NEWS MEDIA'S MOTION FOR ATTORNEYS' EYES ONLY ACCESS TO CLOSURE MOTIONS Case No. 251403576 Honorable Tony F. Graf, Jr.
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Defendant, Tyler James Robinson, by and through undersigned counsel, hereby responds to the *News Media's Motion for Attorneys Eyes Only Access to Closure Motions* (Dkt. 335). Mr. Robinson asks the Court to deny the News Media's motion.

MEMORANDUM

Mr. Robinson has never objected to the News Media receiving notice of closure/classification motions, although Mr. Robinson did initially propose that the parties simply effectuate service by publication in the public filings of the case. *See* Dkt. 169 (“Mr. Robinson will comply with the notice requirements in Rule 4-204”). However, on November 10, 2025, this Court issued its initial *Order Requiring Parties to Serve All Closure or Reclassification Motions on the Media*. Dkt. 171. This order requires the parties to both serve all classification and closure motions on representatives of the press who have requested notice and to file proof of service. *Id.* at 2.

Mr. Robinson complied with that Order immediately and served the earlier-filed *Motion to Classify Transcript and Audio* filed November 3, 2025, on the News Media. Dkt. 173 (Notice of Service). The News Media objected to the classification motion. Dkt. 220. A hearing was held on December 11, 2025.

On December 10, 2025, Mr. Robinson filed his Motion to Disqualify and exhibits. At the same time, Mr. Robinson filed a *Motion to Classify Motion to Disqualify as Private and Request for Closure Hearing*. Dkt. 232. The motion to classify was served on the News Media via email, as stated in the certificate of service for the motion. The classification issues were resolved with the filing of redacted, public versions of the motion, opposition, and reply.

On December 29, 2025, the Court issued the governing order regarding notice of motions for classification. Dkt. 267. Under the December 29th Order, “the parties are ORDERED to

serve all closure motions on members of the press who have requested notice. The parties must file proof of service with the court.” *Id.* at 2. However, specific to requests regarding electronic media coverage, this Court determined:

[T]he parties are not required to serve notice on members of the press of motions to *limit* electronic media coverage. *Compare* Utah R. Jud. Admin. 4-401.01(2) (permitting courts to restrict or limit electronic media coverage) *with* 4-202.04.

Id. (emphasis in original).

On January 16, 2026, Mr. Robinson filed a *Motion to Exclude Still Photographers, TV Cameras, and Microphones From the Courtroom (Evidentiary Hearing Requested)* (Dkt. 305) (“*Motion to Exclude*”). Concurrent with that filing, Mr. Robinson filed a *Motion to Classify Motion to Exclude Still Photographers, RV Cameras and Microphones from the Courtroom as Private*. Dkt. 310. In accordance with the Court’s order and as noted in the certificate of service, *id.* at 5, Mr. Robinson served a copy of the motion to classify on counsel for the News Media by email the same day the motion was filed.¹ The News Media cannot deny that they received the motion to classify, as they lodged an objection to it on January 23, 2026 (Dkt. 323).

The News Media’s real complaint here is *not* that they did not receive Mr. Robinson’s classification motion. Rather, the News Media’s complaint is that Mr. Robinson has not provided them with a copy of the underlying *Motion to Exclude*, as the News Media wishes to file an opposition thereto. However, the News Media fails to acknowledge this Court’s contrary order on December 29, 2025, which explicitly does *not* require Mr. Robinson to serve motions to limit electronic media coverage on the News Media, as this Court may suspend or limit electronic

¹ Mr. Robinson’s counsel notes that initially, the *Motion to Classify the Motion to Exclude* was marked as “private” in the court record. This was not done at Mr. Robinson’s request and appears to have been a mistake. Upon learning of the issue, Mr. Robinson’s counsel contacted the Court Clerk and requested that the classification be changed to “public.”

media coverage at any time. Dkt. 267, at 2. Mr. Robinson's determination that the News Media is not entitled to the underlying *Motion to Exclude*, temporarily classified as private pursuant to Utah Rule of Judicial Administration 4-202.04(3)(A),² is entirely appropriate.

Importantly, the News Media's request also assumes, as does its *Provisional Opposition to Motion to Exclude Cameras* (Dkt. 350), that it has standing in this criminal case to be heard on Mr. Robinson's *Motion to Exclude* and, if the Court desires to hear from the News Media on the issue, that a formal pleading is the appropriate means. It bears repeating that the News Media are not parties to this criminal case; "[o]nly the State and the defendant are actual parties to a criminal action." *State v. Lane*, 2009 UT 35, ¶ 17, 212 P.3d 529. This principle has already been acknowledged and affirmed by this Court in its *Order Denying the Media's Request to Intervene* (Dkt. 267). Moreover, the State has objected to Mr. Robinson's *Motion to Exclude*, citing the same First Amendment cases the News Media oft cites and arguing the same public access issues the News Media raises in its own filings. *See* Dkt. 354. There is no reason to believe that the public's interest is not being sufficiently addressed in the litigation between the parties.

The News Media are not traditional litigants. Mr. Robinson urges the Court to make this clear by denying the News Media's motion. Specifically, the Court should make clear that the News Media may not simply file pleadings on non-classification/closure motions filed by the parties without invitation from the Court to do so. Similarly, the Court should not make a blanket order that the parties must provide an "attorney eyes only" copy of all underlying filings when a

² The News Media seem to suggest in their motion and other filings that the Court is incorrect in temporarily classifying the underlying motion at issue in motions for classification/closure as "private." However, Mr. Robinson's counsel are unaware of any other means for the Court Clerk to "deny access to the record until the court enters an order" as is required when a motion to classify is filed. Utah R. Jud. Admin. 4-202.04(3)(A). Perhaps the rule drafters envisioned additional functionalities in the court e-filing system that do not currently exist.

party seeks leave to classify those filings. The parties are in the best position to assess the amount of information that should be released from an underlying pleading to the News Media while classification and closure issues are being litigated.³ If additional information is ultimately released during the closure hearing process, it will be done at the direction of the Court based on the circumstances presented, not because of a blanket order. The News Media are acutely aware that they are afforded the opportunity for a hearing on classification/closure motions if they so request. If the Court decides in that process that additional information should be disclosed to counsel for the media about a specific motion or other pleading, it should only be after Mr. Robinson has the opportunity to raise concerns with the Court concerning the consequences of such disclosures. The blanket order the News Media seeks here eliminates those safeguards. *See* Utah R. Jud. Admin. 4-202.04(4); *see also* Dkt. 267, at 2.

CONCLUSION

Based upon the foregoing, the Court should deny the News Media's blanket request for access to pleadings the parties seek to classify as private during the pendency of classification litigation.

RESPECTFULLY SUBMITTED this 12th day of February, 2026.

/s/ Kathryn N. Nester
Kathryn N. Nester

/s/ Richard G. Novak
Richard G. Novak

/s/ Michael N. Burt
Michael N. Burt

/s/ Staci Visser
Staci Visser

Attorneys for Defendant, Tyler James Robinson

³ For example, Mr. Robinson's counsel had a confidential call with counsel for the News Media concerning the Motion Filed January 9, 2026, in order to help the News Media assess whether or not to object to the motion to classify on that issue.

CERTIFICATE OF SERVICE

This is to certify that a true and correct copy of the foregoing was served via the Court's electronic filing system on the 12th day of February, 2026, which served all attorneys of record.

I also certify that on February 12, 2026, a copy of the foregoing was emailed to the following counsel for their respective media entities:

Jeffrey J. Hunt (5855)
David C. Reymann (8495)
Carissa A. Uresk (18114)
PARR BROWN GEE & LOVELESS
101 South 200 East, Suite 700
Salt Lake City, Utah 84111
Telephone: (801) 532-7840
jhunt@parrbrown.com
dreymann@parrbrown.com
curesk@parrbrown.com

C. Michael Judd (14692)
PARSONS BEHLE & LATIMER
201 South Main Street, Suite 1800
Salt Lake City, Utah 84111
Telephone: (801) 532-1234
mjudd@parsonsbehle.com

/s/ Staci Visser